

		sake of efficiency in order to avoid the necessity of Plaintiff filing an additional motion for leave to amend.
5	25-01459786 Bradley Consulting Group vs. FCA US LLC	Motion to Enforce Settlement Plaintiffs Bradley Consulting Group and Tom Bradley-King’s Motion to Enforce Repurchase Offer and Settlement Agreement is DENIED. Timeliness of opposition Plaintiffs’ opposition is untimely as it was served on 9/4/26 but due on 8/27/26 pursuant to Code of Civil Procedure section 1005, subdivision (b). The court has discretion to accept or reject late-filed or served papers. (<i>See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [citing to Cal. Rules of Court, rule 3.1300, subd. (d)].) In its discretion, the Court will consider the late-filed opposition. Legal standard Code of Civil Procedure section 664.6, subdivision (a) provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” “A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter judgment pursuant to the terms of the settlement.’” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182-1183 [cleaned up].) Plaintiffs seek to enforce the repurchase offer FCA sent to Plaintiffs on 2/21/24 pursuant to section 664.6.

		On 2/21/24, defendant FCA US LLC (FCA) sent Plaintiffs a repurchase offer letter setting forth a total repurchase amount of \$56,503.19 and states, “If this offer is acceptable, please sign and return this letter . . .” (Abeel Decl., ¶ 2, Ex. A at p. 1.) The repurchase letter is also accompanied by a release agreement that states Plaintiffs agree to release FCA from liability, other than that arising from personal injuries and medical expenses, related to the vehicle as of the date of this Agreement. (Abeel Decl., ¶ 2, Ex. A at p. 3.) Plaintiffs did not sign and return the repurchase offer or the release but informed FAC on 9/26/24 that the total buy back number was approximately \$86,000 and not the \$56,503.19 previously offered. (Abeel Decl., ¶ 3, Ex. B at p. 1.) Counsel further stated, “I need to know we are on the same page as to what the buy back amount is and for what collateral costs.” (<i>Id.</i>) Plaintiffs’ counsel followed up with FCA regarding the repurchase several more times from September 2024 through November 2024 with no response from FCA. (Abeel Decl., ¶ 4, Ex. C.) On 11/13/24, FCA responded to state it would reimburse Plaintiffs for “payments, interest, and registration” but not for “insurance, maintenance, or fuel.” (Abeel Decl., ¶ 5, Ex. C at p. 2.) Plaintiffs followed up with the current registration and Retail Installment Sales Contract on 11/15/24, at which point FCA no longer responded. (Abeel Decl., ¶ 5, Ex. C.) On 7/29/26, FCA sent an itemized offer with a release to Plaintiffs’ counsel for final settlement of this matter. (Lemalu Decl. ¶ 8, Ex. E.) FCA’s counsel was informed Plaintiffs’ counsel was out of the country and would not return to the office until 8/10/26. (Lemalu Decl. ¶ 9.) (While the Lemalu Declaration references an email chain reflecting this correspondence as Exhibit F, that exhibit is not attached.) As stated above, a settlement is enforceable under section 664.6 “only if the parties agreed to all material settlement terms.” Plaintiffs’ declaration and evidence demonstrate the parties did not agree to all material terms, including the repurchase amount, such that a settlement may be enforced under section 664.6. Plaintiffs concede no agreement was made as they state the amount owed to Plaintiffs remains at issue. (Mtn. at 4:11-12.) Defendant also demonstrates the settlement negotiations are ongoing as it sent Plaintiffs’ counsel an offer for final settlement of this matter as recently as 7/29/26 but has not yet received a response. Accordingly, the Court DENIES Plaintiffs Bradley Consulting Group and Tom Bradley-King’s Motion to Enforce Repurchase Offer and Settlement Agreement.
8	24-01375951 <i>LaSorte vs. Ghassemieh</i>	1) Motion for Sanctions 2) Motion for Terminating Sanctions The Court GRANTS the motion of Christina La Sorte for a terminating sanction against defendant Majid Gassemieh dba Ultimate Autoline